

July 13, 2026
Dept. 9
Probate Tentative Rulings

13.	26PR0154	IN THE MATTER OF THE CARE FAMILY REVOCABLE TRUST AS RESTATED SEPTEMBER 17, 2021 AND AMENDED JANUARY 12, 2023
PETITION HEARING		

On May 29, 2026, Petitioner, Carole Good ("Petitioner"), filed a Petition for an Order to Confirm Validity of Trust; Confirm Trustee; and Confirm Assets to Revocable Trust. Notices of Hearing were filed on June 10, 2026.

Settlors and initial Trustees, Gary J. Carr and Sally F. Carr (collectively the "Settlors"), Restated The Carr Family Revocable Trust (the "Trust") on September 17, 2021. Mrs. Carr thereafter amended the Trust on January 12, 2023, wherein she retired as Trustee.

Petitioner asserts the Settlers intended the Charles Schwab IRA account no. 2124-9819 and ROTH IRA account 2124-9820 (collectively the "Schwab accounts") to be part of the Trust Corpus, which is supported by the Schedule of Community Property Assets signed and dated September 17, 2021. Exhibit A.

Mr. Carr passed away on October 5, 2022 and Mrs. Carr passed away on November 5, 2025. Article Two, paragraph 2.1 of the Last Will of Sally F. Carr provides the following:

2.1 Gift of Entire Estate

I give all of my property to the trustee of the CARR FAMILY REVOCABLE TRUST, created on April 24, 2007, and amended and restated under the declaration of trust executed on the same date as, but immediately before, the execution of this will, by GARY J. CARR and SALLY F. CARR, as Settlers and Trustees. The trustee of that trust shall add the property disposed of under this will to the trust principal and hold, administer, and distribute the property in accordance with the provisions of that declaration of trust, including any amendments and restatements of that declaration of trust that have been made before or after execution of this will. Exhibit D.

Petitioner asserts the Schwab accounts were not transferred into the Trust correctly as intended by the Settlers and there is no evidence to support the conclusion that the property was to come distributed as a separate, non-trust asset.

Petitioner seeks the following orders:

1. Determine the Trust as Restated on September 17, 2021 and amended January 12, 2023 is valid;
2. Confirm Carole Goold is the current acting trustee of the Trust; and

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3. Confirm the Schwab accounts are assets of the Trust to be held, administered and distributed by Carole Goold, as the current acting trustee, under the terms of the Trust.

Probate Code § 17200, in part, provides:

(a) Except as provided in Section 15800, a trustee or beneficiary of a trust may petition the court under this chapter concerning the internal affairs of the trust or to determine the existence of the trust.

(b) Proceedings concerning the internal affairs of a trust include, but are not limited to, proceedings for any of the following purposes:

(3) Determining the validity of a trust provision.

(5) Settling the accounts and passing upon the acts of the trustee, including the exercise of discretionary powers.

(10) Appointing or removing a trustee.

The Amendment and Restatement of the Carr Family Revocable Trust Article Two, section 2.1 provides:

2.1 Definition of Trust Estate

All property subject to this instrument from time to time is referred as the “trust estate” and shall be held, administered, and distributed as provided in this instrument. The trustee shall hold, administer, and distribute the property in the Schedule of Community Property Assets (which are attached hereto and made part of this trust instrument), any other property that may be hereafter subject to this trust, and the income and proceeds attributable to all such property, in accordance with the provisions of this instrument.

Schedule A includes “All Investment Accounts with Charles Schwab: Acct No.: 1119-6345, 2122-6352, 2122-6358, 2122-6365, 2124-9819, 2124-9820.”

Section 1.4 of the Trust instructs Carole Goold to be successor trustee in the event of a vacancy. Section 1.5 of the Trust provides for Mrs. Carr’s resignation as trustee effective immediately. An Acceptance of Trustee was signed by Carole Goold.

TENTATIVE RULING #13:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE

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COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.